

GAHC010145402020



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : AB/2880/2020

HUSSAIN ALI AND 2 ORS
S/O LATE MOFIJUDDIN, R/O TELIA BEBEJIA, P.O. AND P.S.-JURIA, DIST-
NAGAON, ASSAM, PIN-782124

2: NAZRUL ISLAM

3: FAIJUL ISLA

VERSUS

THE STATE OF ASSAM
REPRESENTED BY THE PUBLIC PROSECUTOR, ASSAM

Advocate for the Petitioner : MR. K H KHANDAKAR

Advocate for the Respondent : PP, ASSAM

BEFORE
HONOURABLE MR. JUSTICE MIR ALFAZ ALI

ORDER

11.11.2020:

By this application under Section 438 Cr.P.C., the petitioners, namely, Hussain Ali, Nazrul Islam and Faijul Islam have prayed for pre-arrest bail apprehending arrest in connection with Juria P.S Case No.393/2020 registered under Sections 447/326/294/354/506/34 IPC.

Heard Mr. K. H. Khandakar, learned counsel for the petitioners and Mr. N. J. Dutta, learned Additional Public Prosecutor, Assam. Also perused the case diary produced today.

As per the allegation made in the FIR, the petitioners assaulted the informant in course of a quarrel and ensued on the issue of a cow destroying the bamboo fencing. Although case was registered under Section 326 IPC, the injury report available in the case record shows that no grievous injury was caused and the injury sustained by the informant is simple in nature. There is also no incriminating material to support the allegation of outraging modesty.

Having considered the materials in the case diary, this Court is of the view that custodial interrogation of the petitioners may not be required and as such, their prayer for pre-arrest bail deserves to be allowed. It is, therefore, provided that in the event of arrest of the petitioners in connection with the aforesaid case, they shall be released on bail on furnishing a bail bond of Rs.20,000.00 (Rupees twenty thousand) only each, with a suitable surety of the like amount to the satisfaction of the arresting authority. This direction of pre-arrest bail shall be subject to the following conditions:

1. The petitioners shall appear before the Investigating Officer within 15 days and co-operate with the investigation.
2. The petitioners shall not directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer.

This bail petition stands disposed of accordingly.

JUDGE

Comparing Assistant